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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

07/10/2024
Clerk of the Court
BY: JAMES FORONDA
Deputy Clerk

Attorney for Defendants
LAUREN YVONNE TOM, individually and as trustee of THE RUBY JANG TOM IRREVOCABLE TRUST, U/A dated January 7, 2021; RUBY JANG TOM, individually and as trustee of the 1995 BENJAMIN TOM & RUBY JANG TOM REVOCABLE TRUST, U/A dated September 26, 1995

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

YASMINE CURITANA and IAN BEGG, Plaintiffs, v. LAUREN YVONNE TOM, individually and as trustee of THE RUBY JANG TOM IRREVOCABLE TRUST, U/A dated January 7, 2021; RUBY JANG TOM, individually and as trustee of the 1995 BENJAMIN TOM & RUBY JANG TOM REVOCABLE TRUST, U/A dated September 26, 1995; MAVEN COMMERCIAL, INC. DBA JOHN J. DITO & SON; and DOES I - 10, inclusive, Defendants.	Case No.: CGC-24-614482 DEFENDANTS' ANSWER TO PLAINTIFFS' FIRST AMENDED COMPLAINT Filed Date: 5/14/2024

COMES NOW Defendants LAUREN YVONNE TOM, individually and as trustee of THE RUBY JANG TOM IRREVOCABLE TRUST, U/A dated January 7, 2021; RUBY JANG TOM, individually and as trustee of the 1995 BENJAMIN TOM & RUBY JANG TOM REVOCABLE

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TRUST, U/A dated September 26, 1995. (hereinafter, "Defendants") in answer to the FIRST AMENDED COMPLAINT of Plaintiffs, YASMINE CURITANA and IAN BEGG (hereinafter, "Plaintiffs"), herewith denies each and every, all and singular, the allegations of said unverified FIRST AMENDED COMPLAINT, and each alleged cause of action thereof, and in that connection, said Defendants denies that Plaintiffs has been injured or damaged in any of the sums mentioned in the FIRST AMENDED COMPLAINT, or in any other amount, or at all, by reason of any action or omission.

AFFIRMATIVE DEFENSES

AS A FIRST, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants alleges that said FIRST AMENDED COMPLAINT, and each alleged cause of action thereof, fails to state facts sufficient to constitute a cause of action against this answering Defendants.

AS A SECOND, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants alleges that Plaintiffs was careless and negligent in and about the matters alleged in the FIRST AMENDED COMPLAINT, and each alleged cause of action thereof, and that said carelessness and negligence on said Plaintiffs' own part proximately contributed to the happening of the loss and damages complained of, if any there were. Under the doctrine of comparative negligence, Plaintiffs' own comparative negligence shall reduce any and all damages sustained by said Plaintiffs.

AS A THIRD, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants alleges that said damages sustained by Plaintiffs were either wholly or in part the fault of others, whether that fault be the proximate result of negligence, strict liability, breach of warranty, breach of contract or any other type of fault caused by persons, firms, corporations, or entities other than this answering Defendants and said negligence or fault comparatively reduces the percentage of fault or negligence, if any, by this answering Defendants.

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AS A FOURTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants alleges that Plaintiffs failed to mitigate their damages.

AS A FIFTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants alleges that the FIRST AMENDED COMPLAINT and each alleged cause of action thereof, fails to state facts sufficient to constitute a cause of action in that said FIRST AMENDED COMPLAINT, and each cause of action thereof, is barred by the statute of limitations as stated in Part Two, Title II, Chapter 3, of the California Code of Civil Procedure, beginning with Section 335, and continuing through Section 349.4 and, more particularly, but not limited, to Sections 337, 337.1, 337.15, 337.5, 338, 339, 340 and 343.

AS A SIXTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants alleges that the provisions of the "Fair Responsibility Act of 1986" (commonly known as Proposition 51, Civil Code Sections 1430, 1431, 1431.1, 1431.2, 1431.3, 1431.4, 1431.5 and 1432) are applicable to this action to the extent Plaintiffs'' injuries and damages, if any there were or are, were proximately caused or contributed to by the carelessness, negligence or fault of persons or entities other than answering Defendants.

AS A SEVENTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Plaintiffs, with full appreciation of the particular risks involved, nevertheless knowingly and voluntarily assumed the risks and hazards of the activity complained of and the damages, if any, resulting therefrom.

AS AN EIGHTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Defendants did not have to perform under the alleged contract because Plaintiffs waived any and all rights under any and all contracts between the parties.

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AS A NINTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Plaintiffs failed to provide actual or constructive notice of the allegedly uninhabitable conditions.

AS A TENTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believe and thereon alleges that Defendants did not have an opportunity to cure the conditions alleged in Plaintiffs' FIRST AMENDED COMPLAINT.

AS A ELEVENTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Plaintiffs offset all and/or too much rent. In the event of a Judgment in favor of Plaintiffs, Defendants are entitled to an offset from such Judgment for the rent owed and for any and all recoverable fees and costs associated with recovering said sums.

AS A TWELVETH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Plaintiffs failed to make rent payments. In the event of a Judgment in favor of Plaintiffs, Defendants is entitled to an offset from such Judgment for the rent owed and for any and all recoverable fees and costs associated with recovering said sums.

AS A THIRTEENTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Plaintiffs breached numerous lease covenants.

AS AN FOURTEENTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Plaintiffs violated her Tenant obligations and Cal. Civ. Code '1941.2 absolves Defendants of any duty to

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repair.

AS A FIFTEENTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Plaintiffs are estopped by their conduct from asserting each of the causes of action upon which she seeks relief.

AS A SIXTEENTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Plaintiffs has not suffered any losses and Defendants has not been unjustly enriched as a result of any action or inaction by Defendants or its agents. Plaintiffs, therefore, are not entitled to any disgorgement or restitution.

AS A SEVENTEENTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Plaintiffs is not entitled to treble, exemplary or punitive damages in this lawsuit.

AS A EIGHTEENTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants are informed and believes and thereon alleges that Plaintiffs is not entitled to attorneys' fees or costs in this lawsuit.

AS A NINETEENTH, SEPARATE AND AFFIRMATIVE DEFENSE TO THE FIRST AMENDED COMPLAINT, AND EACH ALLEGED CAUSE OF ACTION THEREOF, answering Defendants presently have insufficient knowledge or information upon which to form a belief as to whether it may have additional, as yet unstated, affirmative defenses. Answering Defendants reserves herein the right to assert additional affirmative defenses in the event discovery indicates that would be appropriate. / / /

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WHEREFORE, this answering Defendants prays that the Plaintiffs take nothing by way of their Unverified FIRST AMENDED COMPLAINT, that Defendants have judgment for costs of suit incurred herein, together with such other and further relief as the court may deem just and proper.

Dated: July 10, 2024

CLAPP, MORONEY, VUCINICH, BEEMAN+SCHELEY

By: _____

Adrianne C. Duncan
Attorney for Defendants
LAUREN YVONNE TOM, individually and as trustee of THE RUBY JANG TOM IRREVOCABLE TRUST, U/A dated January 7, 2021; RUBY JANG TOM, individually and as trustee of the 1995 BENJAMIN TOM & RUBY JANG TOM REVOCABLE TRUST, U/A dated September 26, 1995

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Curitana, Yasmine, et al. v. Tom, Lauren Yvonne, et al.
San Francisco County Superior Court Case No. CGC-24-614482

PROOF OF SERVICE
[*Code of Civ. Proc. §§ 1011, 1013, 1031a, 2015.5*]

METHOD OF SERVICE:

☐ By Personal Service ☐ By Mail ☐ By Overnight Delivery
☐ By Messenger Service ☐ By Facsimile ☒ By E-Mail/Electronic Transmission

1. I am a citizen of the United States and am employed in the County of Alameda, State of CALIFORNIA. I am over the age of 18 years and not a party to the within action.

2. My place of employment is 5860 Owens Drive, Suite 410, Pleasanton, California 94588.

3. On the date set forth below, I caused to be served a true and correct copy of the document described as:

DEFENDANTS' ANSWER TO PLAINTIFFS' FIRST AMENDED COMPLAINT

I served the documents on the persons below, as follows:

Attorney for Plaintiff JASON N. WOLFORD DANIEL W. WAYE WOLFORD WAYNE LLP 220 Montgomery Street, Suite 1100 San Francisco, CA 94104 Telephone: (415) 649-620 Email: jason@wolford-wayne.com	

4. The document(s) was served by the following means (specify):

a. ☐ **BY OVERNIGHT DELIVERY**. I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the persons at the addresses in item 4. I place the envelope or package for collection and overnight delivery at an office or a regularly utilized drop box of the overnight delivery carrier.

b. ☐ **BY MESSENGER SERVICE**. I served the documents by placing them in an envelope or package addressed to the persons at the addresses listed in item 4 and providing them to a professional messenger service for service.

c. ☐ **BY FAX TRANSMISSION**. Based on an agreement of the parties to accept service by fax transmission, I faxed the documents to the persons at the fax numbers listed in item 4. No error was reported by the fax machine that I used.

d. ☒ **BY E-MAIL OR ELECTRONIC TRANSMISSION**. Based on an agreement or Case Management Order, I caused all of the above-entitled document(s) to be sent to the recipients listed by electronic mail. This service complies with C.C.P. §1010.6. No electronic message or other indication that the transmission was unsuccessful was received within a reasonable time after the transmission.

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☒ **(State)** I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

☐ **(Federal)** declare that I am employed in the offices of a member of the bar of this court at whose direction this service was made. I declare under penalty of perjury that the foregoing is true and correct.

Executed on July 10, 2024 at Pleasanton, California.

Nihad

Zahira Nihad

Proof of Service – Civil
[Code of Civ.Proc. §§ 1011, 1013, 1013a, 2015.5]

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